

part of the amount due on the judgment pursuant to Section 704.800. The order for sale of the dwelling subject to the homestead exemption shall specify the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and shall include the name and address of each such person... ." (§ 704.780, subd. (b).) If no bid is received at the sale that exceeds the amount of the homestead exemption plus the amount necessary to satisfy all liens and encumbrances on the property, "the homestead shall not be sold and shall be released and is not thereafter subject to a court order for sale upon subsequent application by the same judgment creditor for a period of one year." (§ 704.800, subd. (a).) If no bid is received that is 90 percent or more of the fair market value determined by the court, the homestead shall not be sold unless the court, upon motion by the judgment creditor, grants permission to accept the highest bid exceeding the minimum bid or makes a new order for sale of the homestead. (§ 704.800.) When the property is sold, the proceeds are distributed in the following order: (1) to the discharge of liens and encumbrances, (2) to the judgment debtor in the amount of the homestead exemption, (3) to reimbursement of the levying officer's costs, (4) to the judgment creditor, and (5) to the judgment debtor in the amount remaining. (§ 704.850.) (*Wells Fargo Financial Leasing, Inc. v. D & M Cabinets* (2009) 177 Cal.App.4th 59, 67-69.)

No opposition to the OSC was filed. The court is prepared to review the value of the liens, the value of the exemption and to determine whether given the FMV identified by judgment creditor the sale would produce any funds that would apply towards the judgment.

DARNELL MOORE v. DONALD HURT, DRH CONSTRUCTION GROUP, and DRH INVESTMENT GROUP, LLC
Case No. CU25-06885

Plaintiff's Motion to Strike Verified Answer

TENTATIVE RULING

Plaintiff DARNELL MOORE's unopposed motion to strike Defendants DONALD HURT and DRH INVESTMENT GROUP, LLC's verified answer filed February 23, 2026 is DENIED.

The court acknowledges that the answer initially contains a general denial despite the fact that Plaintiff filed a verified complaint. Per Code of Civil Procedure section 431.30, subdivision (d), denials of allegations in a verified complaint "shall be made positively or according to the information and belief of the defendant," as opposed to merely being part of a general denial.

But the answer also proceeds to respond to each alleged paragraph.
